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## Appeal Decision

Site visit made on 8 September 2026

**by Alison Fish BA (Hons) DipTP MRTPI**

an Inspector appointed by the Secretary of State

**Decision date: 23 September 2026**

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### **Appeal Ref: 6007416**

#### **Land adjacent to Red Lane, Rosudgeon, Cornwall TR20 9PU**

- The appeal is made under section 78 of the Town and Country Planning Act 1990 (as amended) against a refusal to grant permission in principle.
  - The appeal is made by Mr P Crocker against the decision of Cornwall Council.
  - The application Ref is PA25/04855.
  - The development proposed is permission in principle for up to 5 dwellinghouses.
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### **Decision**

1. The appeal is dismissed.

### **Preliminary Matters**

2. The Government published a revised version of the National Planning Policy Framework (the Framework) on 17 August 2026. The main parties have had the opportunity to comment on the implications of these changes for the appeal, and I have taken it into account in coming to my decision.
3. The planning application form is clear that the appeal relates to a minimum of 1 and a maximum of 5 dwellings. I have assessed the proposal on this basis, and treated the drawings as being for illustrative purposes only.
4. Although the Council do not refer to Policy 3 of the Cornwall Local Plan Strategic Policies 2010-2030 adopted November 2016 (CLP) in their reason for refusal, it is discussed in the officers delegated report and the appellant has referred to it as being of 'key relevance' to the appeal in their statement of case. Therefore, I will not prejudice any party by taking Policy 3 of the CLP into account in reaching my decision.
5. The Planning Practice Guidance advises that permission in principle is an alternative way of obtaining planning permission for housing-led development. The permission in principle consent route has 2 stages: the first stage (or permission in principle stage) establishes whether a site is suitable in-principle. The scope of the considerations for permission in principle is limited to location, land use and the amount of development permitted. All other matters are considered as part of the second ('technical details consent') stage, when the detailed development proposals are assessed. This appeal relates to the first of these 2 stages.

### **Main Issue**

6. Therefore, the main issue is whether the site is suitable for residential development, having regard to location, proposed land use and the amount of development.

## Reasons

7. The appeal site is located outside the settlement limit of Rosudgeon identified in the Perranuthnoe Parish Neighbourhood Plan 2019-30 (NP). Policy 3 of the CLP sets out the circumstances in which development outside settlements will be permitted including where proposals constitute rounding off. In that case, proposals should be on land which is immediately adjoining the settlement and of a scale appropriate to its size and role.
8. Rounding off is described as land which is substantially enclosed but outside of the urban form of a settlement and where its edge is clearly defined by a physical feature that also acts as a barrier to further growth (such as a road). It should not visually extend building into the open countryside<sup>1</sup>. Further advice is provided in the Chief Planning Officers Advice Note. This is not adopted policy or a supplementary planning document but as both parties have referred to it, so have I. This says that for a site to be considered to be rounding off it should, amongst other things, be predominantly enclosed by edging features and contained within longstanding and enclosing boundary features.
9. The appeal site comprises a rectangular shaped field with its western edge forming a boundary with Red Lane. Existing residential properties line the eastern side of the road. The southern boundary of the appeal site abuts the rear of the properties fronting on to the A394. Ivy Cottage is located to the north of the site, although established planting and trees means that it is not particularly apparent from the appeal site. The close proximity to existing residential development means that the site is physically well related to the settlement. In this respect I concur with the Inspector's findings in the appeal elsewhere on Red Lane<sup>2</sup> ('the Red Lane appeal'), that further residential development would not be wholly unexpected here.
10. Nevertheless, the elongated site provides a significant visual break between the development fronting the A394 and Ivy Cottage. In addition, the land east of the appeal site is undeveloped and open and separated from the appeal site by a boundary hedge. This boundary comprises a stone-faced bank with associated planting. However, rather than forming a robust hedgebank, the stone-faced bank is low with low-level vegetation and a lack of hedgerow trees. This means that it does not provide a strong sense of enclosure. Instead, it allows views across to the undeveloped field beyond, which has a similarly a low-level eastern boundary which extends the views into undeveloped countryside further beyond.
11. This means that the appeal site is not substantially enclosed and it has a clear affinity with the undeveloped countryside beyond which is clearly visible from Red Lane. Additional landscaping could not fully mitigate this impact. Development on the appeal site would visually extend building into the countryside and therefore the proposal would not constitute rounding off.
12. The appeal site is also located within the Tregonning and Gwinear section of the Cornwall and West Devon Mining Landscape World Heritage Site (WHS). WHSs are places of outstanding universal value, defined as of a cultural and/or natural significance that are so exceptional as to transcend national boundaries.

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<sup>1</sup> Paragraph 1.68 of the Cornwall Local Plan

<sup>2</sup> Appeal ref: APP/D0840/W/25/3367115 Land to north- northeast of Red Lane House, Red Lane, Rosudgeon TR20 9PU ('The Red Lane appeal')

13. A key component of the Outstanding Universal Value (OUV) is the survival of features across the landscape that demonstrate the significant contribution made by Cornwall and West Devon to Britain's Industrial Revolution during the eighteenth and nineteenth centuries through deep copper and tin mining. The appellant's Heritage Statement confirms that the appeal site was historically a mineworkers' smallholding. As such, the site exhibits one of the seven attributes which, individually and collectively, convey and express the OUV.
14. Although the loss of the original homestead and the redevelopment of the surrounding land for housing has substantially reduced the integrity and legibility of this part of the WHS, the appeal site with its elongated form and surviving boundaries positively contributes to the OUV of the WHS.
15. Whilst the existing boundaries which define the smallholding would largely be retained and indeed could be enhanced through further planting at technical details stage, development on the appeal site, even for a single dwelling would erode the legibility of the site as a historic mineworkers' smallholding. The presence of other surviving smallholdings elsewhere in the WHS, does not in my view reduce the significance of the appeal site to the WHS or provide justification for the further loss of an important attribute that contributes to the OUV of the WHS.
16. Whilst the harm is likely to be minor given the scale of the proposed development and the extent of the WHS as a whole, the Framework states that any harm to a designated heritage asset will be a matter of considerable importance and weight<sup>3</sup>. It also requires that the effect on the asset and its significance is weighed against any public benefits, as does Policy 24 of the CLP.

*Heritage Balance and conclusion on the main issue*

17. I am told the Council's 5 year housing land supply sits at either 3.8 or 3.9 years. Even if I took the higher figure, this is well below the Government's expectation. In light of this, the proposal would provide much needed additional housing. This would make a modest but nonetheless useful contribution towards housing supply at a time when the Council are failing to deliver sufficient housing. For these reasons I give this public benefit moderate weight.
18. There would also be economic and social benefits arising from the construction and occupation of the units in terms of jobs and expenditure, including the support for local services and facilities in Rosudgeon. The proposal is for a small site which could be built out quickly. Given the scale of the proposed development, these public benefits attract moderate weight.
19. The space for occupiers to grow food, proposals to repair and replant hedge boundaries and the benefits to biodiversity cannot be secured at permission in principle stage. Securing a high standard of design at technical details consent stage is a general expectation for development rather than a benefit of this proposal. Together these considerations attract very limited weight.
20. Policy HE6 of the Framework states that when considering the potential effect of a development on the significance of a designated heritage asset, substantial weight should be given to the asset's conservation. In this context, the collective moderate

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<sup>3</sup> Policy HE6 (3) of the National Planning Policy Framework August 2026

weight I have given to the public benefits of the proposal do not outweigh the harm to the designated heritage asset of the highest significance.

21. Bringing all this together, I conclude that the site would not be suitable for the residential development proposed, having regard to location, proposed land use and the amount of development. The proposal would be contrary to Policies 1, 3, 23 and 24 of the CLP, Policies CW5 and HCA1 of the NP and Policy C1 of the Climate Emergency Development Plan Document February 2023 which set out the spatial strategy for housing together with the need to ensure the best use of land and protect Cornwall's natural and historic environment.

#### *Other considerations*

22. In the Red Lane appeal, the Inspector found that the appeal site was outside, albeit well-related to the built form of the settlement. They also found harm in respect of the effect on the character and appearance of the area and the significance of the WHS but gave significant weight to the benefits of the appeal development, specifically the provision of 9 affordable dwellings. That proposal is materially different to the one before me.
23. The Quaker House appeal<sup>4</sup> and the St Austell appeal<sup>5</sup> did not result in harm to the OUV of the WHS and the St Austell appeal was for development on a much larger scale than the proposal before me now. Neither are therefore comparable to the appeal development.
24. Policy S5 of the Framework sets out a list of certain forms of development outside settlements which should be approved unless the benefits of doing so would be substantially outweighed by any adverse effects. In this case, the 5 year housing land supply position indicates an unmet need for housing and I have determined that the proposal would be physically well-related to the existing settlement. The criteria in Policy S5 (j) have therefore been met. I consider this further in the final planning balance.

#### **Other Matters**

25. I have had regard to the comments of interested parties including but not limited to noise and disturbance during construction, whether the proposal would set a precedent for further development, highway safety, loss of hedgerows, trees and biodiversity and the erosion of dark skies. Some of these are not matters which would fall within the scope of consideration for the first stage of permission in principle. In any event, I have identified harm in respect of the main issues so do not need to consider other matters further.

#### **Final Planning Balance**

26. The proposal would be contrary to the development plan. Proposals should be determined in accordance with the development plan unless material considerations indicate otherwise.
27. There would be collective benefits arising from the provision of up to five new homes but in accordance with Policy S5 of the Framework, I must consider whether these would be substantially outweighed by any adverse effects.

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<sup>4</sup> Appeal ref: APPD0840/W/24/3345642 Quaker House, Penstraze, Chacewater, Cornwall TR4 8PE

<sup>5</sup> Appeal ref: APP/D0840/W/23/3332730 Land b/w Aspen Drive and Boscoppa Road, Aspen Drive, St Austell, Cornwall PL25 3JY

28. In this case, I have determined that the proposal would be harmful to the WHS, an irreplaceable resource and a designated heritage asset of the highest significance. Policy HE4 of the Framework states that heritage assets should be conserved in a manner appropriate to their significance. In accordance with Policy HE6 of the Framework I have given substantial weight to the assets conservation and conclude that in this instance the benefits would be substantially outweighed by the adverse effect to the WHS.

### **Conclusion**

29. The proposed development would be contrary to the development plan and there are no other considerations which outweigh this finding. Consequently, with reference to Section 38(6) of the Planning and Compulsory Purchase Act 2004, the appeal is dismissed.

*Alison Fish*

INSPECTOR